

HOUSE No. 2484

The Commonwealth of Massachusetts

PRESENTED BY:

Jay D. Livingstone

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to anesthesiologist assistants.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jay D. Livingstone</i>	<i>8th Suffolk</i>	<i>1/15/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>2/25/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>2/25/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>2/25/2025</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>2/25/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>3/17/2025</i>
<i>Shirley B. Arriaga</i>	<i>8th Hampden</i>	<i>7/30/2025</i>

HOUSE No. 2484

By Representative Livingstone of Boston, a petition (accompanied by bill, House, No. 2484) of Jay D. Livingstone and others relative to anesthesiologist assistants. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to anesthesiologist assistants.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. Chapter 112 of the General laws is hereby amended by adding the following
2 sections after section 12GG:

3 Section 12HH. As used in sections 12HH to 12MM, inclusive, the following words shall
4 have the following meanings:

5 (i) “Anesthesiologist” means a physician who is licensed under section 2 of chapter 112
6 and has completed a residency in anesthesiology approved by the American Board of
7 Anesthesiology or the American Osteopathic Board of Anesthesiology;

8 (ii) "Anesthesiologist assistant" means any person who assists in the practice of medicine
9 under the supervision of an anesthesiologist or group of anesthesiologists approved by the board
10 to supervise such assistant;

(i) "Assists" means the anesthesiologist assistant may personally perform those duties and responsibilities delegated to him by his supervising anesthesiologist with the supervising anesthesiologist being physically present in the same facility.

(ii) "Back-up anesthesiologist" means a board approved physician anesthesiologist designated by the supervising anesthesiologist to ensure supervision of the anesthesiologist assistant in the supervising anesthesiologist's absence. A back up anesthesiologist is subject to the same requirements imposed upon the supervising anesthesiologist if the back-up anesthesiologist is acting as a supervising anesthesiologist;

(iii) "Board" means the Board of Registration in Medicine;

(iv) "Supervising anesthesiologist" means a:

i. Anesthesiologist who utilizes and agrees to be responsible for the medical acts of a board-approved anesthesiologist assistant; or

ii. Back-up anesthesiologist when acting in the absence of the supervising anesthesiologist;

(v) "Supervision" means the ready, on-site availability of the supervising anesthesiologist for consultation and direction of the activities of the anesthesiologist assistant;

(vi) "In the same facility" refers to anywhere in the facility where anesthesia services may be needed including but not limited to the operating room suites, intensive care unit, emergency room, obstetric suite, endoscopy suite, radiology suite, cardiac services suite, and recovery room.

Section 12II. Notwithstanding any other provision of law, an anesthesiologist assistant may assist in the practice of medicine relating to the provision of anesthesia services under the supervision of a licensed anesthesiologist. The anesthesiologist assistant may perform those duties and responsibilities delegated to him by the supervising anesthesiologist when the duties and responsibilities are provided under the supervision of a licensed anesthesiologist approved by the board. The board may adopt rules and regulations to implement the provisions of sections 12HH to 12MM that include scope of practice of an anesthesiologist assistant including requirements and limitations on the provision of anesthesia services by an anesthesiologist assistant as determined by the board to be in the best interests of patient health and safety and consistent with the standards of care established by the National Commission for Certification of Anesthesiologist Assistants.. Regulations adopted by the board pursuant to this section shall include the following provisions:

(1) An anesthesiologist assistant must be supervised by an anesthesiologist licensed under section 2 of chapter 12 who is actively engaged in clinical practice and available on-site to provide assistance to the anesthesiologist assistant.

(2) Anesthesiologist assistants must comply with all continuing education requirements and recertification requirements of the National Commission for Certification of Anesthesiologist Assistants or its successor organization.

Section 12JJ. The board shall register and issue licenses to anesthesiologists assistants in the commonwealth, take appropriate disciplinary action against anesthesiologist assistants, approve and issue certificates of approval of programs for the training of anesthesiologist assistants and maintain a current roster of persons serving as anesthesiologist assistants in the

commonwealth as well as a list of approved training programs. Disciplinary action may include revocation or suspension of license, censure or other disciplinary action, including the imposition of restrictions upon a license relating to a violation of the boards regulations.

Section 12KK. (a) Applications for licensure as an anesthesiology assistant shall be submitted in accordance with procedures established by the board. The board may grant an anesthesiologist assistant license to an applicant who:

(i) Has graduated from an anesthesiologist assistant program accredited by the Commission on Accreditation of Allied Health Education Programs (CAAHEP) or its predecessor or successor organization;

(ii) Has satisfactorily completed a certification examination administered by the National Commission for Certification of Anesthesiologist Assistants or other national certifying agency established for such purposes which has been reviewed and approved by the board and is currently certified;

(iii) Completes an application form and pays a licensing fee in an amount determined by the board.

(b) The board may issue a temporary license to any person who successfully completes a CAAHEP or other board approved program for the education and training of an anesthesiologist assistant but has not passed a certification examination. To allow the opportunity to take the next available certification examination, any temporary license issued pursuant to this subsection shall be issued for a period not to exceed one (1) year.

(c) All licenses other than temporary licenses expire annually on December 31. An anesthesiologist assistant may renew his license by completing and submitting a renewal application form published by the board and renewal fee to the board prior to expiration of his current license.

(d) The board may reinstate a lapsed license if the applicant pays a reinstatement fee and meets the requirements for the granting of an initial license.

Section 12LL. Notwithstanding any provision of law to the contrary, nothing in Sections 12HH to 12MM shall be construed to prevent an anesthesiologist assistant from having access to and being able to obtain drugs as ordered and directed by the supervising anesthesiologist.

Section 12MM. Any person practicing as an anesthesiologist assistant or representing that he is an anesthesiologist assistant without a license or any person employing an unlicensed person to practice as an anesthesiologist assistant shall be punished by a fine of not less than \$100 and not more than \$1,000 or by imprisonment for not less than 30 days and not more than 1 year in the house of corrections, or by both such fine and imprisonment.